

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JENNIFER SILER,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE SPECIALIST
ANTHONY LEE, Shield No.7406, POLICE OFFICER
NAZIR ABDUL, Shield No. 25172, SERGEANT
TIMOTHY CECCHINI, Shield No. 613, and POLICE
OFFICERS JOHN DOES #s 1-4 (names and numbers of
whom are unknown at present),

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 1, 2021

Yours, etc.

/s/
JACOBS & HAZAN, PLLC
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE SPECIALIST ANTHONY LEE, Shield No.7406, Transportation Bureau
POLICE OFFICER NAZIR ABDUL, Shield No. 25172, 75th Precinct, 1000 Sutter Ave,
Brooklyn, NY 11208
SERGEANT TIMOTHY CECCHINI, Shield No. 613, Detective Bureau SID

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

JENNIFER SILER,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE SPECIALIST
ANTHONY LEE, Shield No.7406, POLICE OFFICER
NAZIR ABDUL, Shield No. 25172, SERGEANT
TIMOTHY CECCHINI, Shield No. 613, and POLICE
OFFICERS JOHN DOES #s 1-4 (names and numbers of
whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff JENNIFER SILER, by her attorneys, Jacobs & Hazan, PLLC, as and for her
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on December 1, 2018 at approximately 6:00 am defendants unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff in the vicinity of Wortman Avenue and Georgia Avenue, Brooklyn New York, without probable cause or legal justification. Thereafter, the officers falsified allegations against plaintiff to the District Attorney's Office and initiated a criminal prosecution against plaintiff for Loitering for the Purpose of Engaging in a Prostitution (PL 240.37.02). Plaintiff was detained for approximately 24 hours before she was released from custody on her own recognizance at arraignment. The defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial when they initiated a criminal prosecution against plaintiff without probable cause and based upon false, incomplete, and misleading evidence that they provided to the Kings County District Attorney's Office. At no time relevant herein did plaintiff commit a crime, or violate the law in any manner, nor did defendants possess an objective factual basis to establish probable cause to accuse plaintiff of committing a crime or violating the law in any manner. Plaintiff was forced to endure a criminal prosecution with extremely embarrassing charges brought against her regarding prostitution and that was publicly pending against her for 3 months before the charges were dismissed and sealed in their entirety on February 27, 2019. Additionally, plaintiff was forced to appear in criminal court to

address the embarrassing prostitution related charges on approximately 7 occasions, each of which took approximately 6 hours of plaintiff's day. Finally, plaintiff's property worth \$490 that was unlawfully seized from her by the defendants was not returned to plaintiff. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

1. Plaintiff JENIFER SILER is a resident of the state of New York.
2. Defendant DETECTIVE SPECIALIST ANTHONY LEE, Shield No.7406, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
3. Defendant DETECTIVE SPECIALIST ANTHONY LEE, Shield No.7406, was at all times relevant herein, assigned to the 75th Precinct and is currently assigned to the Transportation Bureau.
4. Defendant DETECTIVE SPECIALIST ANTHONY LEE, Shield No.7406, is being sued in his individual and official capacity.
5. Defendant POLICE OFFICER NAZIR ABDUL, Shield No. 25172, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
6. Defendant POLICE OFFICER NAZIR ABDUL, Shield No. 25172, is and was at all times relevant herein, assigned to the 75th Precinct.
7. Defendant POLICE OFFICER NAZIR ABDUL, Shield No. 25172, is being sued in his individual and official capacity.
8. Defendant SERGEANT TIMOTHY CECCHINI, Shield No. 613, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
9. Defendant SERGEANT TIMOTHY CECCHINI, Shield No. 613, was at all times relevant herein, assigned to the 75th Precinct and is currently assigned to the Detective Bureau SID.
10. Defendant SERGEANT TIMOTHY CECCHINI, Shield No. 613, is being sued in his individual and official capacity.

11. Defendant New York City Police Officers John Does #s 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

12. New York City Police Officers John Does #s 1-4 are being sued in their individual and official capacities.

13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On or about December 1, 2018, at approximately 6:00 am plaintiff was lawfully present, unsuccessfully attempting to hail a taxicab, in the vicinity of Wortman Avenue and Georgia Avenue, Brooklyn, New York when the individually named defendants unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff, without reasonable suspicion, probable cause, or any legal justification.

18. As plaintiff was walking on the sidewalk in the vicinity of Wortman Avenue and Georgia Avenue, Brooklyn, New York, an unmarked NYPD vehicle pulled alongside plaintiff, and the officers in the vehicle exited the vehicle, unlawfully stopped, unlawfully searched, and falsely arrested plaintiff without probable cause or legal justification.

19. The officers did not recover any illegal drugs, weapons, or contraband from plaintiff's possession, custody, or control.

20. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the officers possess any objective evidence that established probable cause to believe plaintiff committed a crime or violated the law,

21. . The officers refused to tell plaintiff why they were arresting her, but plaintiff later learned that the officers arrested her based upon their observations of her attempting to hail a cab.

22. Defendants did not know what plaintiff was doing when she attempted to hail several vehicles that drove past her.

23. Defendants could not hear the content of any of the conversations plaintiff may have had with anyone in a vehicle that drove past her and/or refused to give her a ride.

24. Defendants did not observe plaintiff get into any vehicles or exchange money with anyone.

25. Defendants did not observe plaintiff make any lewd gestures toward anyone or touch anyone at any time relevant herein.

26. The clothing plaintiff was wearing at the time of the arrest was not provocative or revealing. In fact, plaintiff's clothing covered the majority of her body and was common female attire that can be worn comfortably at work by female business professionals such as attorneys.

27. The defendants did not possess any objective evidence to establish any of the elements necessary to arrest and charge an individual with Loitering for the Purpose of engaging in Prostitution (PL 240.37.02).

28. Defendants unlawfully handcuffed and falsely arrested plaintiff for allegedly Loitering for the Purpose of Engaging in Prostitution, without probable cause or legal justification.

29. Defendants transported plaintiff to the 75th Precinct against her will.

30. Plaintiff was unlawfully searched, fingerprinted, photographed, and detained in a holding cell at the 75th Precinct for several hours.

31. Thereafter, plaintiff was transported to Kings County Central Booking against her will, whereat she was unlawfully detained in several holding cells with numerous other women.

32. Plaintiff was unlawfully detained for approximately 24 hours before she was arraigned and released from custody on her own recognizance at arraignment.

33. Defendants provided the Kings County District Attorney's Office with false, misleading, and incomplete allegations about plaintiff's conduct and the evidence in defendants' possession to justify their basis for arresting plaintiff and charging her with committing a crime.

34. Defendants initiated a criminal prosecution against plaintiff without probable cause and provided false, misleading, and incomplete allegations about plaintiff's conduct to the Kings County District Attorney's Office to support and initiate a criminal prosecution against plaintiff.

35. At arraignment plaintiff was charged with Loitering for the Purpose of Engaging in a Prostitution (PL 240.37.02) even though the officers lacked probable cause to accuse her of committing that crime.

36. Plaintiff was forced to appear in criminal court to address the embarrassing prostitution charges on approximately 7 occasions, each of which took approximately 6 hours of plaintiff's day.

37. By e-mail dated February 24, 2019, the ADA assigned to the prosecution of plaintiff advised plaintiff's criminal defense attorney that the District Attorney's Office wanted to advance the case for dismissal because the DA's Office could not prove the allegations brought against plaintiff.

38. The criminal charge brought against plaintiff was dismissed and sealed on February 27, 2019, after the District Attorney's Office affirmatively moved to dismiss the charge because the ADA realized they lacked probable cause to continue prosecuting plaintiff and could not prove the allegations made against plaintiff.

39. The defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a fair trial when they initiated a criminal prosecution against plaintiff without probable cause and based upon false, incomplete, and misleading evidence that they provided to the Kings County District Attorney's Office.

40. Defendants unlawfully seized plaintiff's property worth \$490 and the property that was unlawfully seized from plaintiff by the defendants was not returned to plaintiff.

41. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, and denied plaintiff the right to due process/ right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

42. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

43. The individually named defendant police officers have significant histories of being disciplined by the NYPD and having complaints filed against them by members of the public for engaging in police misconduct as NYPD police officers and violating the Constitutional Rights of members of the public, but the discipline by the NYPD on each of those occasions was insufficient to prevent the officers from continuing to engage in such misconduct because the discipline constituted a “slap on the wrist” and was not sufficient punishment for the misconduct the defendants engaged in.

44. Numerous complaints and lawsuits have been filed against the individually named defendants by members of the public throughout their careers, but most of the time the NYPD conducted a cursory investigation or no investigation whatsoever into the complaints and concluded that it did not possess enough evidence to determine whether defendants engaged in misconduct and therefore did not discipline them for many of the complaints made against them.

45. Even on the occasions where the NYPD determined that defendants engaged in police misconduct, the NYPD disciplined defendants in a manner that was insufficient to address the misconduct engaged in by defendants.

46. Defendants have continued to violate the Constitutional Rights of members of the public because they never suffered any significant consequences for engaging in the unlawful behavior in the past and apparently feel as if they can continue engaging in the unlawful behavior without any serious consequences.

47. The deliberate indifference by the NYPD and defendant City of New York towards its officers and defendants when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff’s injuries because defendants knew that there would not be any consequences for violating plaintiff’s rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

48. Given defendants histories of engaging in serious police misconduct toward members of the public, defendants should not have been patrolling the streets of New York and/or supervising other officers at the time of plaintiff’s arrest in this case, and plaintiff’s rights may not have been violated if the defendant City of New York had properly disciplined defendants and other officers throughout the NYPD prior to the date of plaintiff’s arrest in this case.

49. The City of New York is deliberately indifferent to and fails to properly address situations when NYPD officers have engaged in police misconduct and violated the rights of members of the public.

50. The unlawful search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ a fair trial by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION**Violation of Plaintiff's Fourth Amendment and Fourteenth Amendment Rights**

51. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized plaintiff's property, unlawfully stopped, questioned, frisked, seized, searched, strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause, in violation of plaintiff's right to be free from an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION**False Arrest and False Imprisonment**

53. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search inside plaintiff's pockets and underneath her clothing, employed by defendants herein, and terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

64. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

66. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

67. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

68. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

69. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

70. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 69 with the same force and effect as if more fully set forth at length herein.

71. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

72. Defendants commenced and continued a criminal proceeding against plaintiff.

73. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

74. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

75. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment Right to Due Process/ Right to a Fair Trial

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 76 with the same force and effect as if fully set forth herein.

78. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

79. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

80. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

81. In withholding/creating false evidence against plaintiff and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

82. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of her constitutional rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

84. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of her safety, and he was humiliated and subject to other physical constraints.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution

89. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. Plaintiff was unlawfully stopped, questioned, frisked, searched, falsely arrested, maliciously prosecuted, and denied the right to due process/ right to a fair trial without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

91. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally stop, question, frisk, search, falsely arrest, fabricate evidence, maliciously prosecute, and deny members of the public the right to due process without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

92. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

93. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, malicious prosecution, and denial of due process because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, falsely arrest, maliciously prosecute, and deny due process to members of the public when there is no factual basis to suspect the individual has committed a crime.

94. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

95. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City

of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

96. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, falsely arrest, maliciously prosecute, and deny due process to individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests and prosecutions without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

97. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

98. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

99. The City of New York has acted with deliberate indifference to the Fourth, Fifth, and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

100. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein

JURY DEMAND

101. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jennifer Siler demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
December 1, 2021

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 1, 2021

/s/
DAVID M. HAZAN